

ELIZABETH II



1972 CHAPTER xvii

An Act to confer powers on the Seaham Harbour Dock Company in relation to the capital and management of their undertaking; to confer further powers on the Company; and for other purposes.

[29th June 1972]

WHEREAS the Seaham Harbour Dock Company (hereinafter referred to as "the Company") were incorporated by the Seaham Harbour Dock Act, 1898, and under the authority of that Act and subsequent Acts the Company are the owners of the harbour and certain docks, railways and other works at Seaham in the county of Durham: 1898 c. ccxxxvii

And whereas it is expedient that further powers be conferred on the Company in relation to the capital and management of their harbour undertaking as in this Act contained:

And whereas it is expedient that the other powers contained in this Act should be conferred on the Company and that the other provisions of this Act be enacted:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

Short and
collective
titles.

1.—(1) This Act may be cited as the Seaham Harbour Dock Act 1972.

(2) The Seaham Harbour Dock Acts and Orders, 1898 to 1958, and this Act may be cited together as the Seaham Harbour Dock Acts and Orders 1898 to 1972.

Incorporation
of Acts.

2.—(1) The following enactments, so far as the same are applicable to the purposes and are not inconsistent with the provisions of this Act, are hereby incorporated with the provisions of this Act other than section 5 (Power to borrow on mortgage of assets) of this Act, namely:—

1845 c. 16.

(a) the Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital):

Provided that—

(i) section 11 of the said Act of 1845 shall have effect as if the words “Except as otherwise provided by the conditions of issue thereof” were inserted at the beginning of that section;

(ii) section 15 of the said Act of 1845 shall have effect as if for the words “on demand” there were substituted the words “within two months after delivery thereof”;

1863 c. 118.

(b) the Companies Clauses Act 1863 (except the provisions thereof which limit the rate of dividend on preference capital, sections 17 to 21, and Part IV thereof):

Provided that—

(i) section 14 of the said Act of 1863 shall have effect as if the words “out of the profits of each year” and the words from “but if in any year” to the end of the section were omitted;

(ii) section 22 of the said Act of 1863 shall have effect as if the words “ and to the same amount as ” were omitted;

(iii) section 25 of the said Act of 1863 shall have effect as if the words “ or the sum of ten thousand pounds, whichever of the two last-mentioned sums is the smaller sum ” were omitted; and

(iv) section 31 of the said Act of 1863 shall have effect as if after the words “ other than ” there were inserted the words “ in the case of holders of perpetual debenture stock ”.

(2) In the construction of the enactments so incorporated with this Act the expression “ special Act ” shall be read as a reference to this Act and the expression “ company ” shall mean the Company.

(3) The said enactments, as so modified, shall apply to any capital raised or money borrowed under the Seaham Harbour Dock Acts and Orders, 1898 to 1972 (other than the said section 5 of this Act), and, as from the passing of this Act, such of the provisions of those Acts and orders as are inconsistent with those of the said enactments, as so modified, shall cease to have effect.

3.—(1) In this Act, unless the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“ the Act of 1958 ” means the Seaham Harbour Dock Act, 1958; 1958 c. xix.

“ the Company ” means the Seaham Harbour Dock Company;

“ the directors ” means the directors for the time being of the Company;

“ the undertaking ” means the undertaking of the Company as from time to time authorised.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

4.—(1) The Company may for the purposes of the undertaking Power to and without obtaining any certificate of a justice under section 40 borrow.

1845 c. 16. of the Companies Clauses Consolidation Act, 1845, borrow, either by way of mortgage of the undertaking or by the creation and issue of debenture stock, or partly by one and partly by the other of those modes, any sum or sums not exceeding in the whole (when added to any money already borrowed on mortgage or by the creation and issue of debenture stock and still outstanding on the date of the exercise of the foregoing powers of borrowing) nine hundred thousand pounds.

1923 c. lxxxiv. (2) Section 16 (Additional powers of borrowing in respect of existing and authorised capital) of the Seaham Harbour Dock Act, 1923, is hereby repealed.

(3) Section 17 (Applying certain provisions of Act of 1908) of the said Act of 1923 shall have effect as if for reference to the additional borrowing powers conferred by that Act there were substituted reference to the borrowing powers conferred by subsection (1) of this section.

Power to
borrow on
mortgage of
assets.

5.—(1) (a) The Company may borrow money on mortgage of any of the property or other assets of the Company.

(b) The power to borrow on mortgage conferred by the foregoing paragraph may be exercised by the creation and issue of debenture stock, debentures or other securities on such terms as the directors think expedient.

(2) Borrowing by the Company under subsection (1) of this section shall, to any amount borrowed in manner authorised by that subsection and for the time being outstanding, be deemed to have been in the exercise of the powers of the Company to borrow on mortgage of the undertaking or by the creation and issue of debenture stock.

Redeemable
preference
shares and
stock and
debenture
stock.

6.—(1) In this section unless the context otherwise requires—

“ stock ” means preference stock and debenture stock;

“ preference stock ” includes preference shares;

“ issue ” includes re-issue;

“ redeemable stock ” means stock issued under the powers of this section so as to be redeemable;

“ redeemed stock ” means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section, the directors may from time to time by virtue of this Act and without further

or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act and any redeemed stock:

Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of a general meeting of the Company.

(3) Redeemable stock may be redeemed out of revenue or out of capital and such redemption may be effected by purchase, as provided for in subsection (8) of this section, or by paying off the stock, or by issuing to the holder of the stock other stock in substitution therefor and, for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock, the Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit:

Provided that—

- (i) no new stock shall be created, nor shall any redeemed stock be issued, so as to make the total amount of any particular class of stock exceed the amount of stock of that particular class which the Company are for the time being authorised to create, except during an interval of three months between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued;
- (ii) during such interval as aforesaid the amount raised by means of any stock so created or issued shall for the purpose of any enactment regulating the borrowing powers of the Company be deemed not to have been raised.

(4) The redemption of any preference stock issued so as to be redeemable shall not affect the validity of any mortgage or debenture stock if the grant or issue thereof by the Company was lawful in the circumstances existing at the date of grant or issue.

(5) Redeemable stock shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine:

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Company of such stock for subscription and in the certificate of such stock, and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(6) Any discount allowed on the issue or any premium payable on the redemption of any redeemable stock may be written off out of revenue.

(7) For the purpose of any enactment relating to stamp duty the share capital of the undertaking shall be deemed not to have been increased by the issue or, in the case of the creation of new stock under subsection (3) of this section, by the creation and issue of share capital in pursuance of this section for the purpose of redeeming preference stock, except to such extent (if any) as the aggregate nominal amount of any share capital issued or created and issued as aforesaid shall exceed the nominal amount of the preference stock to be redeemed, so long as the preference stock to be redeemed is redeemed before the expiration of such an interval as is mentioned in the provisos to subsection (3) of this section.

(8) (a) The Company may from time to time set aside out of revenue, after providing for the payment of interest on any mortgages, debentures or debenture stock and for other fixed charges and obligations, such sums as the Company consider proper for the purpose of redeeming any redeemable stock which under the terms of the issue thereof is redeemable wholly or partly in cash and the Company may invest any sums so set apart and the income thereof in any securities (not being securities of the Company).

(b) All sums so set aside shall be applied in or towards the redemption of any redeemable stock for the redemption of which they may have been so set aside or may, if the directors think fit, be at any time applied in the purchase of any such redeemable stock at a price not exceeding the redemption price.

Unsecured
loan stock.

7.—(1) The Company may raise all or any part of the money which for the time being they are authorised to raise on mortgage of the undertaking or by the creation and issue of debenture stock by the creation and issue, at such times, in such amounts and manner, on such terms and conditions, and with such rights and privileges, as the Company think fit, of unsecured loan stock instead of the whole or any part of the money which they may from time to time have power to raise on mortgage of the undertaking or by the creation and issue of debenture stock.

(2) Any unsecured loan stock issued by the Company under this section may be issued as redeemable stock and the provisions of section 6 (Redeemable preference shares and stock and debenture stock) of this Act shall apply to such redeemable stock as if it were stock (as defined in that section).

8.—(1) Any securities to which this section applies may have attached to them a right to the holder to have issued to him, in substitution for the whole or any part of his holding of such securities, a holding of ordinary shares or stock at such time or times and subject to such terms and conditions as the Company think fit. Issue of convertible securities.

(2) Any such securities in respect of which the right to convert into ordinary shares or stock has been exercised shall, upon the right being exercised, be deemed to have been paid off and cancelled, and in relation to any such securities, being preference shares or stock, section 4 (Power to raise additional capital) of the Seaham Harbour Dock Act, 1908, shall have effect as if such securities had never been created and issued. 1908 c. lii.

(3) The securities to which this section applies are—

- (a) any preference shares or stock created and issued under the said section 4;
- (b) any debenture stock created and issued under section 10 (Debenture stock) of the Seaham Harbour Dock Act, 1908; or
- (c) any unsecured loan stock created and issued under section 7 (Unsecured loan stock) of this Act.

9. The following section shall be substituted for section 23 (Company may incur temporary loans) of the Act of 1958:— Amendment of section 23 of Act of 1958.

“ Company may incur temporary loans.

23. In addition to the powers to borrow money on mortgage of the undertaking, or to raise money by the creation and issue of debenture stock or unsecured loan stock for the time being conferred on the Company, the Company may, for the purposes of or in connection with the undertaking, borrow by way of temporary loans or overdrafts (secured or unsecured) from banks or otherwise, any sums which they may temporarily require—

- (a) for the purpose of defraying expenses pending the receipt of revenues receivable by them in respect of the period of account in which those expenses are chargeable:

Provided that the aggregate amount outstanding at any time of the moneys so borrowed shall not exceed five hundred thousand pounds; and

- (b) for the purpose of defraying, pending the issue of shares of any description, or the borrowing of money (such issue or borrowing being within

the statutory powers of the Company at the time when the powers of this section to borrow temporarily are exercised), or the receipt of capital moneys from any other source, expenses intended to be defrayed by means of such issue, borrowing, or receipt, as the case may be."

Power to
invest in
other
companies.

10.—(1) In order to provide or facilitate the provision of funds for the establishment, carrying on or extension by any other company of—

- (a) warehouses, wharves, factories or works at or near to any of the docks of the Company; or
- (b) an undertaking or business connected with or ancillary to any of the objects or purposes of the undertaking; or
- (c) a business or activity which the Company are themselves for the time being authorised to carry on; or
- (d) an undertaking or business concerned with the transport or handling of goods; or
- (e) a business or activity which appears to the Company to be advantageous or convenient for, or in connection with, the undertaking or to be directly or indirectly for the benefit of the Company;

or in order to acquire the business or undertaking of any other company carrying on any undertaking, business or activity mentioned in paragraphs (a) to (e) of this subsection, the Company shall be entitled to subscribe for, purchase, take up and hold any shares, stock, mortgages, debentures or debenture stock of and to lend money to such other company and may in respect of such shares, stock, mortgages, debentures or debenture stock for the time being held by them exercise, either by themselves or through some person nominated by the directors for the purpose, all or any of the rights exercisable by an individual holder of such shares, stock, mortgages, debentures or debenture stock.

(2) The Company shall be entitled—

- (a) to apply for the purposes of this section any of their capital or funds for the time being available;
- (b) to sell or dispose of any such shares, stock, mortgages, debentures or debenture stock for the time being held by them; and
- (c) in respect of any such shares, stock, mortgages, debentures or debenture stock for the time being held by them to exercise, either by themselves or through some person nominated by the directors for the purpose, all or any of the rights exercisable by an individual holder of such shares, stock, mortgages, debentures or debenture stock.

11. The following section shall be substituted for section 6 (Power to sell and lease lands) of the Act of 1958:—

" Power to
sell and
lease lands,
etc.

Power to
sell and
lease lands,
etc.

6.—(1) The Company may, notwithstanding anything contained in the Lands Clauses Consolidation Act, 1845, 1845 c. 18. or any enactment from time to time relating to the Company, retain, hold or use and from time to time, for such considerations at such rents and upon such terms (pecuniary or otherwise) and conditions as they may from time to time think fit, sell, exchange or lease any lands from time to time belonging to them and which in the opinion of the Company may not be for the time being required for the purposes of the undertaking and (for such term or period as they may think proper) lease or grant the use or occupation of or easements or rights over or affecting any warehouses, buildings, wharves, yards, cranes, machines or other works or conveniences for the time being belonging to or provided by them.

(2) The Company—

(a) may, for the purposes of the undertaking, manage, use or develop land belonging to them as they think fit; and

(b) in addition may, with a view to selling or otherwise disposing of any right or interest in the land after the development is carried out—

(i) retain any land belonging to them which is not required for the purposes of the undertaking and develop it or procure its development for use by other persons; and

(ii) where the use of land belonging to them for the purposes of the undertaking can be combined with its use for other purposes, develop the land or procure its development for use wholly or partly by other persons.

(3) Where the Company intend to develop or procure the development of land belonging to them for purposes other than the purposes of the undertaking, and are of opinion that the land cannot by itself be developed satisfactorily, they may acquire other land by agreement, whether by way of purchase, exchange, lease or otherwise, for the purpose of developing it or of procuring its development together with the land already belonging to them.

(4) Nothing in this section shall release the Company or any person purchasing or acquiring any land from them under this section, from any rents, covenants, restrictions, reservations, terms or conditions made payable by or contained in any conveyance, lease or other deed or instrument by which the land has been conveyed or leased to or otherwise acquired by the Company or any persons from or through whom the Company have derived title to it”.

Costs of Act.

12. The costs, charges and expenses preliminary to and of and incidental to the applying for and the preparing, obtaining and passing of this Act shall be paid by the Company and may in whole or in part be defrayed out of revenue.

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Seaham Harbour Dock Act 1972

CHAPTER xvii

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